

26STCV00529 26STCV00529

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-09

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Case Number: 26STCV00529 Hearing Date: July 9, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV00529

EMMANUEL

GUAPO vs CAPITAL ONE USA N.A.

July

9, 2026

8:30

AM

NATURE OF PROCEEDINGS:

AMENDED MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FIRST SET OF REQUESTS FOR ADMISSION (RFAs), SPECIAL INTERROGATORIES (SROGs), AND REQUESTS FOR PRODUCTION OF DOCUMENTS (RFPs).

RULING:

The Court denies the Motion
and both sanctions requests.

I.

BACKGROUND

On January 7, 2026, EMMANUEL
GUAPO (Plaintiff), a self-represented litigant, filed a Complaint against CAPITAL
ONE BANK (USA), N.A. (Defendant), identifying Causes of Action for:

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Breach of Contract;

.

Violation of CCP §§1281.97–1281.99; and

.

Declaratory Relief.

Plaintiff alleges conclusions
that Defendant attempted collection without validation, payment, proof of
ownership, or servicing authority.

After filing the initial
motion on June 2, 2026, on June 12, 2026, Plaintiff filed the Amended Motion to
compel further responses to admission requests, special interrogatories and
document requests.

Plaintiff seeks Defendant's
further responses to:

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First Set of Requests for Admission
(RFAs), Nos. 3, 4, 5, and 6, pursuant Code of Civil Procedure § 2033.290;

.

First Set of Special Interrogatories
(SROGs), Nos. 1, 6, 7, 8, 9, and 10, pursuant to Code of Civil Procedure §

2030.300; and

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Plaintiff's First Set of Requests for Production of Documents (RFPs), Nos. 1, 2, 5, 6, and 7, pursuant to Code of Civil Procedure § 2031.310.

Plaintiff also requests sanctions against Defendant and its counsel, jointly and severally, in the sum of \$5,948.41.

Defendant opposes, based upon procedural counterarguments that the amended separate statement after the Motion was untimely after the Motion failed to address the most recent discovery responses, and substantial meeting and conferring nonetheless was not in good faith. Additionally, Defendant seeks \$4,750.00 in sanctions.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., §§ 2030.300, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to interrogatories...."]; and 2031.310, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to an inspection demand...."].)

Where respondents timely responded to requests for admissions, requesting parties may move to compel further answers based upon a showing of some deficiency. (Wimberly v. Derby Cycle Corp. (1997) 56 Cal.App.4th 618, 636; Code Civ. Proc., § 2033.290.)

III.

ANALYSIS

A. Further Responses

Plaintiff asserts that the recent responses require additional content, such as confirming that no information exists if applicable.

Defendant did not address the merits of the responses and relies on procedural objections.

The Court observes that Plaintiff's Amended Separate Statement does not apply all applicable law and thus Plaintiff reasons somewhat inaccurately.

A response to a request for admission must be an admission, denial or statement of inability to admit or deny. (Code Civ. Proc., § 2033.220, subd. (b).) Respondents must admit the part of an admission request that is true (as expressed in the request, or as reasonably and clearly qualified), deny the part that is untrue, and specify the part as to which the responding party lacks sufficient information. (Code Civ. Proc., § 2033.220, subd. (b); *Applera Corp. v. MP Biomedicals, LLC* (2009) 173 Cal.App.4th 769, 778-779, fn.5.) Where a response indicates an inability to admit or deny a request for admission, the responding party must also state that a reasonable inquiry was made as to information known or readily obtainable to obtain sufficient information. (Code Civ. Proc., § 2033.220, subd. (c).)

Interrogatory responses must be (1) the information sought, (2) an exercise of a valid option to produce writings, or (3) an objection. (*Hernandez v. Superior Court* (2003) 112 Cal.App.4th 285, 293.) An interrogatory response must be as complete and straightforward as reasonably available information permits. (Code Civ. Proc., § 2030.220.) If a respondent does not have personal knowledge for a full response, the party shall state that and make a reasonable and good faith effort to obtain the information by inquiries. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406; *Regency Health Services, Inc. v. Superior Court* (1998) 64 Cal.App.4th 1496, 1504.) Where interrogatory responses reveal all information currently available to a party, but the respondent cannot furnish all requested information, then the party should set forth the efforts made to obtain that information. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 782, superseded by statute on another ground as stated in *Guzman v. General Motors Corp.* (1984)

154 Cal.App.3d 438, 444.)

Contention

interrogatories requesting support for complaints or answers involve the subjective reflection of attorneys in formulating a response in a sophisticated process of legal reasoning, sorting through evidence and organizing it in terms of contentions a party is asserting. (Rifkind v. Superior Court (1994) 22 Cal.App.4th 1255, 1263.) ““There is no doubt that a defendant is entitled to discover by appropriate interrogatories the facts, if any, presently known to the plaintiff upon which he bases the allegations of his complaint and upon which he presently relies to prove his case.”” (Tehachapi-Cummings Cnty. Water Dist. v. Superior Court of Kern Cnty. (1968) 267 Cal.App.2d 42, 46 [applying the rule to interrogatory responses by answering defendants].) There can be consequences, rather than compelling further responses, for unsupportive responses to contention interrogatories. In responding to contention requests, respondents’ willful obfuscation, game playing, stonewalling by referencing continuing discovery, providing immaterial information, or concealing support or a lack thereof, may support orders imposing drastic discovery sanctions. (See Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc. (2008) 163 Cal.App.4th 1093, 1102-1104.) Any factually devoid or unsupportive responses may shift the burden of proof for a motion for summary judgment. (Union Bank v. Superior Court (1995) 31 Cal.App.4th 573, 580.)

A document response must

consist of: 1) An agreement to comply, stating whether the productions or inspection will be allowed “in whole or in part,” and that all documents or things in the possession, custody or control of the respondent, as to which no objection is made, will be included, by the date set for inspection (unless informally extended in writing, or the designated timing is subject to objection); 2) a representation of inability to comply, with a specification of any person believed or known to have possession of documents; or, 3) objections and specification of withheld documents. (Code Civ. Proc., §§ 2031.210, subd. (a), 2031.220, 2031.270, 2031.280.) With regard to document requests, a response expressing an inability to comply shall state that a diligent search and reasonable inquiry was made to locate the items, and the reason for an inability to comply, including that the item never existed, was lost or stolen, was destroyed, or is not in respondent’s possession, along with the identity and address of anyone believed to have the document. (Code Civ. Proc., § 2031.230.)

If a party objects to

discovery requests but also provides code-compliant responses to the requests, then nothing is left to address in a motion to compel. (*American Federation of State, County & Municipal Employees v. Metropolitan Water Dist.* (2005) 126 Cal.App.4th 247, 269.)

A motion to compel

further discovery responses cannot be granted based on the reason that verified answers served are really untrue. (*Holguin v. Superior Court* (1972) 22 Cal.App.3d 812, 820, 821.) There is no statutory requirement for respondents to correct untruthful discovery responses, but instead an intentional failure to amend the responses creates the risks of prosecution for perjury, or monetary sanctions. (*Guzman v. General Motors Corp.* (1984) 154 Cal.App.3d 438, 442-443, fn. 4.) A respondent cannot be compelled to admit a fact in discovery, even if its truth is obvious. (*Wimberly v. Derby Cycle Corp.* (1997) 56 Cal.App.4th 618, 634; *Smith v. Circle P Ranch Co.* (1978) 87 Cal.App.3d 267, 273.) The service of willfully false discovery responses is simply not covered by the current version of the Civil Discovery Act. (*Saxena v. Goffney* (2008) 159 Cal.App.4th 316, 333.)

B. Meeting

and Conferencing

A discovery motion should not be denied automatically based upon the reason that the moving parties failed to meet and confer in good faith. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 434. But see *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439 [motion must be denied where lack of meet and confer].) “A determination of whether an attempt at informal resolution is adequate . . . involves the exercise of discretion.” (*Stewart v. Colonial W. Agency* (2001) 87 Cal.App.4th 1006, 1016. Accord, *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293-1294.) A failure to meet and confer in good faith, “may jeopardize the movant’s ability to obtain relief for the other side’s alleged misuse of the discovery process.” (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1298–1299.)

Plaintiff and Defendant debate the nature of meeting

and conferring but both agree that a lot of time and effort went into it. Given the discretionary determination involved, the Court finds that the debatable issue is not any basis for denying the Motion or imposing sanctions.

C. Separate
Statement

Defendant contends that
the Amended Separate Statement cannot be considered, it being untimely filed
after the initial Motion documents addressing outdated discovery responses
instead of more recent supplements served before the Motion.

Plaintiff responds that
the amendment was filed timely.

Courts have discretion
to deny discovery motions where a filed separate statement lacks the content
and format required by the California Rules of Court. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893. Accord, St. Mary v.
Superior Court (2014) 223
Cal.App.4th 762, 778.) Judges are authorized to consider late Separate
Statements based upon the most recent discovery responses. (See Sinaiko Healthcare Consulting, Inc. v.
Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v.
Superior Court (2023) 96 Cal.App.5th 243, 256 [citing Sinaiko
regarding court considering supplemental responses served after motion].) Judges
“have broad discretion in controlling the course of discovery and in making the
various decisions necessitated by discovery proceedings.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) As a
matter of calendar management, courts have discretion as to whether to consider
supplemental filings or to
decide a motion on the documents already filed. (Farber v. Bay View
Terrace Homeowners Assn. (2006) 141 Cal.App.4th 1007, 1015.)

A renewed Motion relates
back to the initial Motion, so long as the earlier one was not taken off
calendar. (Sperber v. Robinson (1994) 26 Cal.App.4th 736, 746 [later motion
did not relate back to earlier motion taken off calendar, for purpose of
calculating timeliness of notice given beyond 45 days after discovery
responses].)

The Court considers the
Amended Motion, in view of such applicable law.

D. Sanctions

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he phrase “substantial justification” has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

But Plaintiff, as a

self-represented litigant, cannot recover sanctions based upon for work hours. Self-represented litigants, “cannot recover attorney’s fees as a discovery sanction” but, “some of the costs that pro se litigants incur, if reasonably identifiable and allocable, are recoverable as sanctions....” (Kravitz v. Superior Court (2001) 91 Cal.App.4th 1015, 1020. See also Argaman v. Ratan (1999) 73 Cal.App.4th 1173, 1175 [“an attorney who litigates in propria persona may not be awarded a monetary discovery sanction....”].)

Alternatively, as to

Plaintiff’s sanctions request, the Court finds substantial justification for Defendant’s debating the propriety of a revised Separate Statement, and the sufficiency of meeting and conferring.

As for Defendant’s

sanctions request, the Court finds substantial justification for Plaintiff’s updated Separate Statement, positions of good faith meeting and conferring, and some valid arguments stated in the Amended Separate Statement as related to response inadequacies.

IV.

CONCLUSION

The Court denies the Motion and both sanctions requests.